

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Neal F. Morrow III (SBN 295497) MFS Legal Inc. 5318 East 2nd Street #490 Long Beach CA 90803 TELEPHONE NO.: (562) 379-2654 FAX NO. (Optional): E-MAIL ADDRESS (Optional): lawclerk@calemonlawteam.com (contact) ATTORNEY FOR (Name): ANUP POKHREL and		FOR COURT USE ONLY R. Burciaga Electronically Filed by Superior Court of CA, County of Santa Clara, on 11/1/2024 12:59 PM Reviewed By: R. Burciaga Case #24CV430540 Envelope: 17169424
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 191 N. First St. MAILING ADDRESS: CITY AND ZIP CODE: San Jose CA 95113 BRANCH NAME: Downtown Superior Court		
PLAINTIFF/PETITIONER: ANUP POKHREL DEFENDANT/RESPONDENT: GENERAL MOTORS LLC		
REQUEST FOR DISMISSAL		CASE NUMBER: 24CV430540
A conformed copy will not be returned by the clerk unless a method of return is provided with the document.		
This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)		

1. TO THE CLERK: Please **dismiss** this action as follows:

- a. (1) ☒ With prejudice (2) ☐ Without prejudice
b. (1) ☐ Complaint (2) ☐ Petition
(3) ☐ Cross-complaint filed by (name):
(4) ☐ Cross-complaint filed by (name):
(5) ☒ Entire action of all parties and all causes of action
(6) ☐ Other (specify):*

on (date):

on (date):

2. (Complete in all cases except family law cases.)

The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed).

Date: 11/1/24

Neal F. Morrow III

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed.


(SIGNATURE)

Attorney or party without attorney for:

- ☒ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

TO THE CLERK: Consent to the above dismissal is hereby given.**

Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

** If a cross-complaint – or Response (Family Law) seeking affirmative relief – is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581 (i) or (j).


(SIGNATURE)

Attorney or party without attorney for:

- ☐ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

(To be completed by clerk)

4. ☒ Dismissal entered as requested on (date): 11/1/2024 12:59 PM5. ☐ Dismissal entered on (date): as to only (name):6. ☐ Dismissal **not entered** as requested for the following reasons (specify):

7. a. ☒ Attorney or party without attorney notified on (date): 11/1/2024 12:59 PM
b. ☐ Attorney or party without attorney not notified. Filing party failed to provide
☐ a copy to be conformed ☐ means to return conformed copy

Date: 11/1/2024 12:59 PM

Clerk, by R. Burciaga, Deputy

PLAINTIFF/PETITIONER: ANUP POKHREL
 DEFENDANT/RESPONDENT: GENERAL MOTORS LLC

CASE NUMBER:
 24CV430540

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name)*:
2. The person named in item 1 is *(check one below)*:
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. ☐ All court fees and court costs that were waived in this action have been paid to the court *(check one)*: ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

 (TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING DECLARATION)



 (SIGNATURE)

